

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 08/06/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 10:00 AM CASE NUMBER: C23-02528
CASE NAME: FLUENCE ENERGY, LLC VS. DIABLO ENERGY STORAGE, LLC
COURT TRIAL HEARING
FILED BY:
TENTATIVE RULING:

This matter is an ongoing court trial.

2. 9:00 AM CASE NUMBER: C26-01145
CASE NAME: SEREN PENDLETON-KNOLL VS. CHRISTOPHER SALDANA
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: SALDANA, CHRISTOPHER
TENTATIVE RULING:

Before the Court is a motion by defendant Christopher Saldana to quash service of the summons and

complaint. For the reasons set forth, the motion is **denied**.

Background

Plaintiff alleges that she and defendant Christopher Saldana are the owners in joint tenancy of a single-family residence located on Santa Rita in Richmond (the "Property"). (Compl. ¶¶ 1, 14.) She also claims an ownership interest with Saldana as tenants in common in certain personal property the parties accumulated during their relationship. (Compl. ¶ 1.) She asserts claims for partition, accounting, and declaratory relief.

Saldana resides at the Property. (Compl. ¶ 15; Saldana Decl. ¶ 2.) Plaintiff filed a proof of service by a registered process server in which the process server declared that he personally served defendant Christopher Saldana with the summons and complaint at 7:01 p.m. on April 9, 2026. (POS filed 4/15/2026.) Defendant Saldana moves to quash the service, contending that the documents were not personally handed to him, that they were left on his doorstep, and that he did not "accept" service. (Saldana Decl. ISO Mot. ¶¶ 2-5.)

Legal Standards Applicable to Motion to Quash and Personal Service of Summons and Complaint

Under Code of Civil Procedure section 418.10, a party who has not made a general appearance in the action may challenge service by moving to quash the summons and complaint. (Code Civ. Proc. § 418.10(a)(1); *Floveyor International, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 793-794 ("*Floveyor*").) A court lacks jurisdiction over a party who has not been properly served with the summons and complaint. (*Dill, supra*, 24 Cal.App.4th at 1439-1440 ["[C]ompliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant," unless the defendant voluntarily makes a general appearance].)

A registered process server's declaration of service "establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return." (Evid. Code § 647; *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750; *Floveyor, supra*, 59 Cal.App.4th at 795 [rebuttable presumption service was proper].) "However, the presumption arises only if the proof of service complies with the applicable statutory requirements. [Citations omitted.]" (*Floveyor, supra*, 59 Cal.App.4th at 795.) (See also *American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390 ["Because of the statutory presumption, defendant was thus required to produce evidence that he was not served."].)

If the defendant presents evidence that he was not served, then Plaintiff bears the burden of proving service was proper under the service of process statutes. "When a defendant challenges that [personal] jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (*Dill, supra*, 24 Cal.App.4th at 1439-1440.)

Code of Civil Procedure section 415.10 provides for personal service of a summons and complaint: "A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery." The statute does not define what constitutes "personal delivery."

Generally, courts have interpreted personal service to mean "the actual delivery of the papers to the defendant in person." (*Stembeck v. Buck* (1957) 148 Cal.App.2d 829, 832.) However, "[t]he individual upon whom the process server attempts to make personal service by manual delivery may not be

heard to claim that service was improper because he refused to accept service." (*Crescendo Corp. v. Shelted, Inc.* (1968) 267 Cal.App.2d 209, 213.) The Court explained: " 'Personal service usually contemplates actual delivery. But the person on whom service is sought may not, by merely declining to take the document offered, deny the personal service on the ground of lack of delivery, where under the circumstances it would be obvious to a reasonable person that a personal service was being attempted. In such case the service may be made by merely depositing the process in some appropriate place where it would be most likely to come to the attention of the person being served.' [Citation omitted.]" (*Id.* at 212.)

Procedural Issues Regarding Service of the Motion

Defendant filed a declaration of service by a third party on May 12, 2026, in which the third party declares copies of the motion to quash were served by mail on counsel for Plaintiff on May 11, 2026. Plaintiff's counsel has filed a declaration with what he declares are the copies of the motion papers served on him by mail, with a copy of the envelope in which the papers were enclosed. (Hilliard Decl. Exh. D.) The motion papers are all unsigned, including Saldana's declaration, and do not include any hearing date, time or place. The proof of service attached to the served copy shows the papers were served on May 10, 2026, but the envelope is postmarked four days later on May 14, 2026.

It is not clear to the Court whether Defendant re-served the motion papers after they were filed on May 11, 2026, but Hilliard denies receiving service of anything other than Exhibit D to his declaration. The evidence on service of the motion raises questions regarding proper service; without service of a notice of motion or notice of hearing that includes the hearing date, time and place, notice is defective. A notice of a motion must include, among other information, the date of the hearing. (Code Civ. Proc. § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." (emphasis added)]; *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537 [failure to include notice of date and time of hearing in notice of motion renders the notice fatally defective]; *Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538 [addressing notice of motion for sanctions]; Cal. R. Ct. 3.1110(b)(1) [the notice of a motion must set forth "the date, time, and location, if ascertainable, of any scheduled hearing. . . ."]].)

Nevertheless, Plaintiff has filed a comprehensive opposition on the merits of the motion. The Court will address the motion on its merits rather than denying the motion for defective service of notice.

Procedural Issues Regarding Opposition to Motion to Quash

The opposition to the motion to quash was not served in compliance with Code of Civil Procedure section 1005. The Court agrees with Defendant that the opposition was improperly served. The proof of service attached to the opposition shows it was served by regular mail on July 23, 2026, ten court days prior to the date of the hearing. Though service was made one day before the nine-court day prior to the hearing deadline for an opposition, Code of Civil Procedure section 1005 requires oppositions and replies to motions to be served "by personal delivery, facsimile transmission, express mail, or other means consistent with Sections 1010, 1011, 1012, and 1013, and reasonably calculated to ensure delivery to the other party . . . not later than the close of the next business day after the time the opposing or reply papers, as applicable, are filed." (Code Civ. Proc. § 1005(c).)

Defendant has objected to the service of the opposition and contends that he did not receive the

mail-served version of the opposition of the date his reply was due. Nevertheless, like Plaintiff, Defendant filed 29 pages of pleadings and declarations in reply to the opposition. The Court will address the motion, opposition, and reply on the merits.

Analysis

A. Personal Service Was Effectuated

The proof of service by the process server declares that he effectuated personal service on Saldana. He states that he "personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): 04/09/2026 at (time): 7:01 PM Christopher Saldana, I delivered the documents to Christopher Saldana with identity confirmed by subject nodding when named. The individual tried to refuse service by refusing to take documents and stated subject is unknown (documents left, seen by subject). The individual appeared to be a black-haired Hispanic male contact 35-45 years of age, 5'8"-5'10" tall and weighing 160-180 lbs. The subject was evasive. See picture of license plate." (POS filed 4/15/2026.)

The "picture of license plate" is not included in the filed proof. Nevertheless, the proof of service meets the requirements of Code of Civil Procedure section 417.10 in effect until January 1, 2027. That statute requires only that for service by personal service under Code of Civil Procedure section 415.10, the proof of service consist of an "affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered" (Code Civ. Proc. § 417.10(a).) This is sufficient to support the presumption of service. (Evid. Code § 647.)

Saldana's motion is supported by his declaration in which he states that an individual came to his door on April 9, 2026 and attempted to serve legal documents on him. (Saldana Decl. ¶ 2.) Saldana says the process server did not "personally hand the documents to him" but left them near his front door and left. (Saldana Decl. ¶¶ 3, 4.) He says he did not "accept personal service of the document." (Saldana Decl. ¶ 5.)

Plaintiff's counsel has filed a declaration in opposition to the motion which includes, among other evidence, an email from Saldana to counsel Hilliard indicating it was sent after 8 p.m. on April 9, 2026, a time after the service was made according to the process server's declaration. (Hilliard Decl. Exh. B.) In the email, Saldana confirms facts which support that he was personally served. He states: "I was approached while in the process of getting my children out of the car, and the interaction that followed caused immediate and significant distress to my daughter. She remains visibly shaken well after the incident. This is not a minor issue—this is a direct and unnecessary impact on a child's sense of safety. [¶] I have video footage of the interaction, which shows that the documents were not handed to me, but instead left at my front door in a manner that was abrupt and disruptive under the circumstances." (Hilliard Decl. Exh. B.) The following day, Saldana sent another email in response to Plaintiff's counsel email in which Hilliard indicated that the process server's version of events was quite different, stating: "I was in the process of getting my young children out of the car when an individual approached, initiated a brief interaction, and then left documents at my front door in an abrupt and disruptive manner. I have video footage documenting the interaction." (Hilliard Decl. Exh. C.) The email again implicitly confirms that the process server had an interaction with Saldana

regarding the service of legal papers (summons and complaint package), and the emails support the process server's characterization of the interaction, including that Saldana was evasive, would not allow the process server to hand the documents to him, and that Saldana was aware the legal documents were being delivered to him though he would not "accept" them. The ring camera video footage which the Court has reviewed from the Google drive link does not capture the interaction that Saldana admittedly had with the process server in the driveway, only the aftermath of that interaction.

Saldana disputes that his emails to counsel are admissions of proper service because he asserted that service was invalid because the documents were "not handed to him" and therefore proper service was not made. (Reply p. 2, ll. 8-10.) Collectively, the process server's Proof of Service, the Saldana Declaration in support of the motion (including his declaration that he has "personal knowledge" of what occurred), and the subsequent email exchanges attached to the Hilliard Declaration show that Saldana was approached by the process server who was attempting to hand Saldana documents that Saldana understood were legal papers, that he refused to allow the process server to hand the documents to him and accept the physical delivery, and the process server therefore left the documents next to his front door where they were clearly visible and where Saldana knew the documents had been left for him. The fact that the process server approached him with the legal documents attempting to serve him in his driveway, as admitted by Saldana's emails to Plaintiff's counsel, and that the process server did not put them into Saldana's hands, apparently because Saldana did not "accept" the documents, does not mean valid personal service was not effectuated. What is required under the statute is that the summons and complaint be personally delivered. The evidence supports that they were personally delivered to Saldana. Weighing the evidence before the Court and under the authority of *Crescendo Corp., supra*, personal service of the summons and complaint by personal delivery to Saldana was effectuated.

B. Defendant's Request for Oral Testimony

Saldana requests that the Court allow oral testimony to address the service of the papers. The Court finds that the totality of the evidence before the Court, including Saldana's own emails, are sufficient to demonstrate personal service by personal delivery of the summons and complaint was accomplished. The Court in its discretion **denies** Defendant's request for oral testimony under Rule 3.1306 of the California Rules of Court.

C. General Appearance by Saldana's Motion to Expunge Lis Pendens

On July 21, 2026, Saldana filed a motion to expunge the lis pendens that Plaintiff filed and recorded against the Property. Plaintiff contends that Saldana's motion to expunge the lis pendens constitutes a general appearance in the action, rendering the motion to quash moot as he has submitted to the personal jurisdiction of the Court over him. The Court briefly reviewed the motion which is made on the ground that the lis pendens is void based on Plaintiff's failure to comply with the pre-filing service requirements of the lis pendens statutes.

Plaintiff cites cases addressing generally what constitutes a general appearance. To the extent Plaintiff appears to argue that Defendant filing the motion to expunge has resulted in a waiver of his right to contest personal jurisdiction by the motion to quash, the Court rejects the argument.

Code of Civil Procedure section 418.10(e) expressly allows a defendant to both file a motion to quash

and "simultaneously answer, demur, or move to strike the complaint" even though those acts would otherwise constitute a general appearance in the action. The statute further provides: "Notwithstanding Section 1014, no act by a party who makes a motion under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section. If the court denies the motion made under this section, the defendant or cross-defendant is not deemed to have generally appeared until entry of the order denying the motion." (Code Civ. Proc. § 418.10(e)(1) [emphasis added].)

The "no act" language was added to Code of Civil Procedure section 418.10 in 2002 and has been construed "broadly." (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 211, 214.) "Subdivision (e) prevents the inadvertent waiver of objections to jurisdiction by delaying recognition of the party's general participation in the litigation until after the jurisdictional issue is finally resolved." (*State Farm General Ins. Co. v. JT's Frames, Inc.* (2010) 181 Cal.App.4th 429, 441 [emphasis added].) "A party may answer, demur, move to strike and perform other actions related to the merits without fear of accidentally waiving a potentially meritorious attack on personal jurisdiction." (*Id.* [emphasis added].) As the Court in *State Farm* explained, "[S]ubdivision (e) does not change the essential rule that '[a] defendant submits to the court's jurisdiction by making a general appearance in an action' by 'participat[ing] in the action in a manner which recognizes the court's jurisdiction.' [Citations omitted.] It merely delays the effect of such actions until the motion to quash is denied or, if the defendant seeks writ review, until proceedings on the writ have concluded. Once the motion is denied or writ proceedings have concluded, the actions undertaken by the defendant while the motion or writ was pending that recognized the trial court's jurisdiction will be 'deemed' to constitute a general appearance, and no further objection to jurisdiction will be permitted." *Id.* [emphasis added].)

Filing the motion to expunge the lis pendens while this motion to quash was pending and not yet determined does not result in a waiver or submission to the Court's jurisdiction, until the motion to quash is resolved. The Court need not address on this motion whether the filing of the motion to expunge constitutes a general appearance in the action.

D. Defendant's Objections to the Opposition

Defendant's Reply includes what Saldana characterizes as "evidentiary" objections, but Objections 1-8 are directed toward legal arguments and factual assertions made in Plaintiff's opposition memorandum, not evidence. Nevertheless, the Court will address Defendant's objections for purposes of clarity regarding the basis of the Court's ruling.

Obj. Nos. 1, 2, and 8: Defendant's "evidentiary" objections are not objections to the admissibility of evidence but rather legal and factual arguments responding to Plaintiff's legal and factual arguments; the Court has considered both parties' relevant legal and factual arguments and the applicable law as set forth in this ruling to reach its conclusion.

Obj. Nos. 3-5: Plaintiff's arguments concerning events in the parties' related pending family law proceeding, D26-00392, possible criminal proceedings, or a "pattern" of evasion of service are not supported by admissible evidence in the record on this motion. The Court has disregarded the

arguments as unsupported and/or irrelevant.

Obj. No. 6: The Court agrees that there is no motion before the Court on this hearing regarding whether Defendant can be compelled to accept electronic service, and the Court does not consider the issue as a result.

Obj. No. 7: The Court has considered the Ring doorbell footage in reaching its ruling with limited ability to discern the audio content, which is consistent with Defendant's attempt to transcribe the audio. (Saldana Suppl. Decl. Exh. B.)

Conclusion and Ruling

Weighing the evidence before the Court, the Court finds Plaintiff has demonstrated Saldana was personally served with the summons and complaint as stated under oath by the process server who performed the service and based on other evidence consistent with such service. The motion to quash service of the summons and complaint is therefore **denied**. Defendant shall file his responsive pleading **within 15 days of the date of service of notice of entry of the order** on the motion to quash. (Code Civ. Proc. § 418.10(b) ["The service and filing of the notice shall extend the defendant's time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant's time to plead for an additional period not exceeding 20 days."].)

Law & Motion

3. 9:00 AM CASE NUMBER: C24-01225
CASE NAME: KEYONA TURNER VS. LEADERSTAT LLC
HEARING IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

The Court has reviewed the Declaration of Mayra Gonzalez and approves the final distributions from the settlement fund.

4. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: FREEDOM FOREVER, LLC

TENTATIVE RULING:

The Motion to Be Relieved as Counsel is **granted**.

5. 9:00 AM CASE NUMBER: C25-02454
CASE NAME: SANDRA BELTRAN VS. MILTON HUEZO MARTINEZ
HEARING ON SUMMARY MOTION

FILED BY: HUEZO MARTINEZ, MILTON R.

TENTATIVE RULING:

Defendant and Cross-Complainant Milton Martinez's motion for summary adjudication of the first cause of action for partition in Martinez's cross-complaint is **denied**.

Plaintiff Sandra Beltran filed this case for quiet title based upon adverse possession and declaratory relief. Martinez filed a cross-complaint for partition by sale and accounting. The title for the property shows that Plaintiff and Defendant each own 50% in the property as joint tenants pursuant to a grant deed executed on January 10, 2018. Beltran alleges in her complaint that she has obtained full ownership of the property through adverse possession. In this motion, Martinez seeks summary adjudication of his partition cause of action in his cross-complaint.

"A co-owner of property has an absolute right to partition unless barred by a valid waiver. (Code Civ. Proc., § 872.710, subd. (b).) '[T]he right of partition may be waived by contract, either express or implied.' (*American Medical International, Inc. v. Feller* (1976) 59 Cal.App.3d 1008, 1014.)" (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) The trial court may grant summary judgment in a partition action and enter an interlocutory judgment directing partition of the property. (*Id.* at 498.)

"If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (Code Civ. Proc., § 872.720 (a).)

Martinez cites to section 872.720, which states that the court should order sale of the property if, "[t]he court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property." (Code Civ. Proc., § 872.820 (b).) While not the main issue in this motion, the Court notes that the Partition of Real Property Act, Code of Civil Procedure sections 874.311-874.323 was amended in 2023 and provides a new procedure for partition among co-tenants. Among its provisions is an appraisal by a neutral third party, buyout option for the co-tenants, and a procedure for open-market sales of the property. The Act also states a preference for partition in kind, "the court shall order partition in kind unless the court, after consideration of the factors listed in Section 874.319, finds that partition in kind will result in great prejudice to the cotenants as a group." (Code Civ. Proc., § 874.318 (a).) Thus, before the Court can order a partition by sale, it must consider the facts in section 874.319 and make the appropriate finding. That being said, the Court could enter an interlocutory judgment determining the parties' interests in the property and finding that a partition is appropriate. The kind of partition would be determined later in the process.

The main issue in this motion is whether the Court can determine the parties' interest in the property. In other words, does the evidence show that the parties are joint owners of the property

with a 50/50 interest in the property, or is a triable issue of material fact on Beltran's adverse possession theory.

Beltran argues that Martinez did not meet his initial burden because he did not address the adverse possession claim. This argument fails. In the context of Martinez's claim for partition based upon his 50 percent ownership interest, Beltran's adverse possession theory is an affirmative defense. Thus, Beltran may raise it in opposing the motion, but Martinez is not required to discuss the issue in his moving papers.

The Court finds that Martinez has met his initial burden by showing that the parties were co-tenants in the property with a 50/50 interest in 2018. (Martinez dec. 5 and ex. A.)

Therefore, the burden shifts to Beltran to show there is a triable issue as to her adverse possession claim. "The elements of an adverse possession claim consist of the following: (1) actual possession by the plaintiff of the property under claim of right or color of title; (2) the possession consists of open and notorious occupation of the property in such a manner as to constitute reasonable notice to the true owner; (3) the possession is adverse and hostile to the true owner; (4) the possession is uninterrupted and continuous for at least five years; and (5) the plaintiff has paid all taxes assessed against the property during the five-year period. [Citations.]" (*Bailey v. Citibank, N.A.* (2021) 66 Cal.App.5th 335, 351.)

When a co-tenant claims adverse possession, they must show notice of the hostile use or ouster to the other co-tenant. "The exclusive occupancy by a cotenant is deemed permissive; it does not become adverse until the tenant out of possession has had either actual or constructive notice that the possession of the cotenant is hostile to him." (*Dimmick v. Dimmick* (1962) 58 Cal.2d at 422.)

When there are co-tenants, "[e]ach tenant in common has a right to occupy the whole of the property. The possession of one is deemed the possession of all; each may assume that another in exclusive possession is possessing for all and not adversely to the others Before title may be acquired by adverse possession as between cotenants, the occupying tenant must bring home or impart notice to the tenant out of possession, by acts of ownership of the most open, notorious and unequivocal character, that he intends to oust the latter of his interest in the common property. Such evidence must be stronger than that which would be required to establish a title by adverse possession in a stranger." (*Hacienda Ranch Homes, Inc. v. Superior Court* (2011) 198 Cal.App.4th 1122, 1128 [internal citations and quotations omitted]; see also *Hunter v. Schultz* (1966) 240 Cal.App.2d 24, 28.)

Thus, the party claiming adverse possession often shows ouster of the co-tenant as a way of showing notice of the hostile use. (See, e.g. *Dimmick, supra*, 58 Cal.2d at 422.) " "An ouster, in the law of tenancy in common, is the wrongful dispossession or exclusion by one tenant of his cotenant or cotenants from the common property of which they are entitled to possession." [Citation.]' [Citation.] '[O]uster must be proved by acts of an adverse character, such as claiming the whole for

himself, denying the title of his companion, or refusing to permit him to enter.' [Citation.] 'Whether there has been an ouster is a legal question.' [Citation.]" (*Hacienda Ranch Homes, supra*, 198 Cal.App.4th 1122, 1128 (emphasis added); *Zaslow v. Kroenert* (1946) 29 Cal.2d 541, 548 (accord).)

Here Beltran's evidence shows she and Martinez purchase the property as joint tenants in January 2018. (Beltran dec. ¶5.) Martinez paid \$10,000 towards the down payment and assisted Beltran in qualifying for a loan. (Beltran dec. ¶6.) In February 2018, the parties ended their relationship and since then Beltran has solely and exclusively possessed and occupied the property. (Beltran dec. ¶7.) Since February 2018, Beltran has paid all mortgage payments, taxes payments and all capital improvements on the property. (Beltran dec. ¶¶10-14.) This evidence shows that there is at least a triable issue on items 1, 4 and 5 for adverse possession.

As to hostile use and notice, Beltran declares that since February 2018 she has excluded Martinez from the property and that he never sought to occupy, use or exercise possessory rights over the property. (Beltran dec. ¶8.) She also declares that in June 2020, Martinez came to the property in search of his tools. He requested permission to enter the home and Beltran refused to allow him to enter. Martinez did not attempt to enter the property and did not contest Beltran's possession or control of the property. (Beltran dec. ¶8.1.)

Here, there is a triable issue as to whether Beltran denied Martinez access to the property in June 2020 (more than five years before this complaint was filed). Refusing to permit Martinez to enter the property is sufficient to show ouster, which raises a triable issue as to items 2 and 3 for adverse possession.

Therefore, the Court finds that there is a triable issue of material fact as to adverse possession and denies Martinez's motion.

6. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BIOCARE MEDICAL LLC
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

7. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
***HEARING ON MOTION IN RE: STRIKE**
FILED BY: BIOCARE MEDICAL LLC
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

8. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION
FILED BY: LUZURIAGA, LUIS DE
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

9. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: LUZURIAGA, LUIS DE
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

10. 9:00 AM CASE NUMBER: C26-00456
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
*HEARING ON MOTION IN RE: SUBSTITUTED SERVICE BY EMAIL
FILED BY:
TENTATIVE RULING:

The Motion for Substituted Service by email was resolved by ex parte motion.

11. 9:00 AM CASE NUMBER: C26-00882
CASE NAME: RIKKI NEAL VS. LUCKY SUPERMARKETS, AN UNKNOWN ENTITY
*HEARING ON MOTION IN RE: AN ORDER NUNC PROTUNC CORRECTING AN EFILING ERROR OF THE FILING DATE OF THE SUMMONS AND COMPLAINT
FILED BY: NEAL, RIKKI
TENTATIVE RULING:

Plaintiff Rikki Neal has filed a Motion for an Order Nunc Pro Tunc Correcting an E-Filing Error of the Filing Date of the Summons and Complaint. Defendant Food Maxx has not yet been served, and the Defendants SaveMart and Lucky Supermarkets have been served but have not filed responsive pleadings. The Motion is therefore unopposed.

Waiting until the last minute, Neal attempted to file his initiating documents on the last day before the close of the statute of limitations, March 12, 2026. He has filed declarations that his attorney send the documents to CalWest to efile on March 12, 2026. CalWest declares that "it submitted them electronically to the Court for filing on March 12, 2026." The document attached as proof does not

prove this – it merely shows the request.

The Complaint is stamped at the top “Electronically Filed Superior Court of CA County of Contra Costa 3/13/2026 11:03 AM By: A. Adams, Deputy.” At the bottom, it is stamped “Processed by Court on 3/19/2026 11:22 AM.” This indicates the document was actually received March 13 at 11:03 a.m. The processing occurred on March 19. Consistent with the law and Court policy, had the document been received on March 12, it would have been deemed filed as of March 12, regardless of when it was processed. Code Civ. P § 1010.6(e)(3); California Rule of Court § 2.252.

The Court takes judicial notice of the envelope from the clerk’s office and it confirms that the document was *not* submitted on March 12, 2026.

Envelope

Submit Date
03/13/2026 11:03 AM PDT
Filed By
Garo Mardigian
Firm Address
730 Salem St.
Glendale, California 91203

Docket Date
03/13/2026 11:03 AM PDT
Filing Source
Calwest
Firm Phone
2133539100

Filing Attorney
DANIEL MOOSSAI
Firm Name
Cal West Attorney Services Inc.
Filer Email
efileresult@calwest.info

The Motion is therefore **denied**.

12. 9:00 AM CASE NUMBER: MSC21-02638

CASE NAME: DAVIS VS SCOTT

***HEARING ON MOTION IN RE: DISMISS THE 3RD AMENDED COMPLAINT**

FILED BY: CHICAGO TITLE COMPANY

TENTATIVE RULING:

Defendant Chicago Title Company's Motion to Dismiss Plaintiff's Third Amended Complaint under Code of Civil Procedure sections 583.210 and 583.250(b) is **granted**. Defendant shall prepare and serve the order and notice of entry of order.

Background

In or about early 2019, Plaintiff Margarie David and Defendant Andre Scott agreed to a partnership to purchase and improve a property at 9 La Noria Way, Orinda for resale. (Third Amended Complaint filed on November 26, 2025 (3AC ¶ 6.) Plaintiff was to take title in her name, provide the down payment of \$148,300 along with closing costs. (3AC ¶¶ 6, 7, 8.) Scott, who served as the real estate agent for the buyer and seller in the transaction, agreed to secure the purchase money loan and oversee improvements to the property. (3AC ¶ 6, 7.) The purchase price was \$1.5 million. (3AC ¶ 8.) Escrow closed on April 4, 2019, and Plaintiff subsequently advanced \$60,175 for improvements. (3AC ¶¶ 9, 10.)

The actual purchaser of the property was Eurisko LLC, a limited liability company formed by Scott. (3AC ¶ 9.) Plaintiff's signature was forged on a Declaration of Non-Ownership required by Defendant Chicago Title Company. (3AC ¶ 11(D).) The forged declaration falsely represented that Plaintiff was not the purchaser and would not take title to the property so that Scott could conceal from Plaintiff

that Eurisko, not Plaintiff, was the true owner. (3AC ¶ 11(D).) Plaintiff discovered the fraud in August 2019 after the lender foreclosed on the second position loan. (3AC ¶ 9.)

Plaintiff filed her original complaint on December 20, 2021, naming Scott and Does 1-50 as defendants. On November 26, 2025, Plaintiff filed the operative 3AC naming Chicago Title Company as Doe 1. (3AC ¶ 2.) Chicago Title was served on December 18, 2025, approximately three years and eleven months after the original complaint was filed. (See Proof of Service filed December 18, 2025.)

Plaintiff asserts eleven causes of action against Scott for breach of contract, breach of fiduciary duty, conversion, accounting, fraud, negligent misrepresentation, negligence, tortious breach of the covenant of good faith and fair dealing, and financial elder abuse under the Welfare & Institutions Code. (3AC ¶¶ 1-65.)

Plaintiff asserts a twelfth cause of action for negligence against Chicago Title, alleging it failed to confirm that Plaintiff understood she was not the purchaser, and failed to implement adequate safeguards to prevent forgery of her signature. (3AC ¶¶ 70, 72.) Plaintiff alleges that Chicago Title gave the Declaration of Non-Ownership form to Scott for Plaintiff to sign, and that Chicago Title did not implement sufficient safeguards to prevent Scott from forging Plaintiff's signature on the form. (3AC ¶ 72.) Plaintiff alleges that Chicago Title knew or should have known of fraud based on Plaintiff's age, the initial refusal of Chicago Title's Orinda office to close the transaction, and a pattern of incremental down payment deposits totaling over \$180,000. (3AC ¶ 69.) Plaintiff alleges that Chicago Title's conduct and failures to act constituted a negligent breach of duty in connection with its role as escrow agent in the transaction. (3AC ¶¶ 73-74.)

Chicago Title now moves to dismiss Plaintiff's action against it under Code of Civil Procedure section 583.210 for failure to serve Chicago Title with the summons and complaint within three years of filing the original complaint. Chicago Title separately demurs to the negligence cause of action, arguing it owed Plaintiff no duty of care as an escrow holder so Plaintiff's negligence claim fails on the merits. Plaintiff opposes the motion.

Legal Standard

A plaintiff must serve "a defendant within three years after the action is commenced against the defendant." (Code Civ. Proc. § 583.210, subd. (a).) "[A]n action is commenced at the time the complaint is filed." (*Ibid.*) Dismissal is mandatory where a plaintiff fails to serve a defendant within the statutory time limits. (Code Civ. Proc. § 583.250, subd. (b).) The three-year rule applies where the defendant seeking dismissal was served as a Doe defendant named in the original complaint, later amended to show his or her true name. (See *Higgins v. Superior Court* (2017) 15 Cal.App.5th 973, 982; *Lesko v. Superior Court* (1982) 127 Cal.App.3d 476, 481–482.) In short, a plaintiff has three years from the date of filing the complaint to identify and serve a Doe defendant. (*Inversiones Papaluchi S.A.S. v. Superior Court* (2018) 20 Cal.App.5th 1055, 1061.)

Under Code of Civil Procedure section 474, "[a] plaintiff ignorant of the identity of a party responsible for damages may name that person in a fictitious capacity, a Doe defendant, and that time limit prescribed by the applicable statute of limitations is extended as to the unknown defendant. A plaintiff has three years under section 581a, subdivision (a) after the commencement of the action to discover the identity of the unknown defendant and effect service of the complaint. [Citation.] When

the complaint is amended to substitute the true name of the defendant for the fictional name, the defendant is regarded as a party from the commencement of the suit." (*Balon v. Drost* (1993) 20 Cal.App.4th 483, 487; see Code Civ. Proc. § 583.210 [successor to former § 581a].)

Discussion

Plaintiff filed the Complaint on December 20, 2021, but did not substitute Chicago Title Company in until November 26, 2025 and did not serve it until December 18, 2025. The Doe amendment therefore appears to be untimely under Civil Procedure section 583.210.

Plaintiff argues that the three-year service rule should not apply because she was unaware of the facts giving rise to Chicago Title's liability until more than three years after the original complaint was filed. Plaintiff cites cases in which courts upheld the right of plaintiffs to pursue claims where the basis for liability of defendants was not discovered until after the occurrence of the facts giving rise to the claim against those defendants.

The Court does not find Plaintiff's argument persuasive. The discovery rule applies to the accrual of a cause of action for statute of limitations purposes, not to the mandatory service requirements of Code of Civil Procedure section 583.210. Code of Civil Procedure section 583.250(b) provides that "[t]he requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." The statutory exceptions to the three-year service requirement are set forth in Code of Civil Procedure section 583.240 and include periods when the defendant was not amenable to the process of the court, prosecution of the action was stayed, the validity of service was being litigated by the parties, or service was impossible, impracticable, or futile due to causes beyond the plaintiff's control. (Code Civ. Proc. § 583.240, subd (d).) Plaintiff's failure to discover the facts giving rise to Chicago Title's liability does not fall within any of these statutory exceptions. Indeed, Code of Civil Procedure section 583.240(d) specifically states that "[f]ailure to discover relevant facts or evidence is not a cause beyond the plaintiff's control for the purpose of this subdivision." (*Id.*; See *Higgins v. Superior Court* (2017) 15 Cal.App.5th 973, 982 ["Cabandong explains that she did not know of Higgins's identity or involvement until after discovery . . . and that once she learned of his involvement, she promptly took affirmative action However, Cabandong's explanation is irrelevant, since for purposes of computing the three years in which the plaintiff must serve the defendant, '[f]ailure to discover relevant facts or evidence is not a cause beyond the plaintiff's control . . . ' (§ 583.240, subd. (d))."]; *Republic Corp. v. Superior Court* (1984) 160 Cal.App.3d 1253, 1256 [under the predecessor to § 583.240(d), plaintiff's failure to discover true identity or facts showing liability of unserved Doe defendant insufficient excuse for delay in service of summons on real defendant].)

As Plaintiff failed to serve Chicago Title within three years of filing this action, and because Plaintiff failed to demonstrate a valid exception to the mandatory provisions of Code of Civil Procedure sections 583.210, subdivision (a) and 583.250, the motion to dismiss is granted. Plaintiff's twelfth cause of action for negligence against Chicago Title is dismissed without prejudice. (Code Civ. Proc. § 581(b)(4); *Franklin Capital Corp. v. Wilson* (2007) 148 Cal.App.4th 187, 214-215.) Plaintiff is free to file a new action against Chicago Title. The Court expresses no opinion as to whether such action would be timely under the applicable statute of limitations.

13. 9:00 AM CASE NUMBER: MSC21-02638

CASE NAME: DAVIS VS SCOTT

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: CHICAGO TITLE COMPANY

TENTATIVE RULING:

Defendant Chicago Title Company's demurrer to the twelfth cause of action for negligence is **off calendar** as moot in light of the Court's ruling on the motion to dismiss. Defendant shall prepare and serve the order and notice of entry of order.

14. 9:00 AM CASE NUMBER: N25-0867

CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC

***HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**

FILED BY: LEWIS, REBECCA

TENTATIVE RULING:

Before the Court is Rebecca Lewis's Claim to Surplus Funds. The Court notes that there was a May 27, 2025 Claim by Robert I. Reed that appears never to have been resolved. While Lewis's claim does not have the Affidavit of Heirship by Alta Maccabee Reed, Reed's Claim does. On August 3, 2026, Susan Mechtel submitted a substantiated claim, but that claim was not previously set for today. The Court continues all three now-filed claims to September 3 so full documentation can be filed on behalf of all three claimants, and Mechtel's filing has the opportunity to be properly placed on calendar.

15. 9:00 AM CASE NUMBER: N25-2380

CASE NAME: SHYLER ACKLEY VS. CITY OF LAFAYETTE

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF LAFAYETTE

TENTATIVE RULING:

Defendant, City of Lafayette, demurs to the petition filed by Shyler Ackley. The demurrer is **sustained without leave to amend**, as discussed below.

I. Background

Petitioner is an uphill neighbor of Nancy Pedneault, owner of "Lot 66." (Petition, ¶1.) Petitioner and twenty-one of his neighbors only access their properties by way of Sessions Road, a 50-foot wide easement that runs through the center of Lot 66. (*Id.* at ¶10.) This easement, and others, are reflected on the subdivision map that established their subdivision, M.S. 502-904. (*Id.* at ¶13.) For decades, because of these easements, Lot 66 was regarded as unbuildable. (*Id.* at ¶14.) In establishing the subdivision, Peter Jakovina opted to burden Lot 66 for the benefit of the other parcels. (*Id.* at ¶15.) Richard Holt, a Planning Commissioner who was on the Commission when the subdivision was approved, purchased Lot 66 from Jakovina while still sitting on the Commission. (*Id.* at ¶17.) Holt later sought a building permit, but was denied following considerable pushback from the uphill residents. (*Id.* at ¶18.)

In 2008, Holt was again unsuccessful in resubmitting an application for a building permit.

(Petition, ¶19.) Holt sued the City and settled the suit pursuant to terms that allowed development of Lot 66. (*Id.* at ¶20.) In 2018, Holt reapplied for a development permit and a variance and the Planning Commission took the position that the easements were "private" easements which needed to be enforced in court because the City would not adjudicate a private dispute. (*Id.* at ¶21.) Before a final decision, the application was withdrawn and Holt passed away. (*Id.* at ¶22.)

Mr. Holt's widow filed for "reapproval", which was granted over neighbors' objection in February 2023. (Petition, ¶23.) In August 2023, Mrs. Holt sold Lot 66 to the current owner, Nancy Pedneault. At that time, there was a valid building permit and variance. (*Id.* at ¶¶24-25.)

On September 22, 2025, the City (1) denied an appeal by petitioner and his neighbors challenging a Planning Commission decision to grant a development permit and variance to Pedneault, and (2) adopted Resolution 2025-45, which issued a building permit and variance to Pedneault. (Petition, ¶1.) Petitioner challenges these actions by the City in this writ petition, which was filed December 9, 2025. (*Ibid.*) He contends, "the City has abdicated its duty to respect a duly approved and recorded subdivision map and, instead, effectively quieted title in the applicant." (*Id.* at ¶31.)

The caption on the petition names the City and Doe defendants, but not any real party in interest. The first paragraph of the petition identifies Nancy Pedneault as the holder of the challenged building permit and variance, establishing that petitioner knew of her role in this matter, but she is not joined as a party.

After efforts to meet and confer pursuant to Code of Civil Procedure section 430.41, subdivision (a) (see Declaration of David J. Bowie, attached to Memorandum in Support of Demurrer, 9:15-17), the City demurred, arguing that Nancy Pedneault is both a necessary and indispensable party, cannot be added as a defendant, and accordingly, the demurrer must be sustained without leave to amend. Petitioner opposes the demurrer.

II. Standard

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof, or from any matter of which the court is required to or may take judicial notice, the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc., § 430.30 (a).) One such grounds for demurrer exists based on a defect or misjoinder of parties. (Code Civ. Proc., §§ 430.10, subd. (d).) Another such ground for demurrer is where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid.*; Code Civ. Proc. § 430.30(a).)

III. Discussion

The determination of whether a party is indispensable is governed by Code Civ. Proc., § 389, which first sets out, in § 389, subd. (a), a definition of persons who ought to be joined in an action if possible (sometimes referred to as necessary parties). (*Quantification Settlement Agreement Cases* (2011) 201 Cal.App.4th 758, 848.) Then, § 389, subd. (b), sets forth the factors to follow if such a person cannot be made a party in order to determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. (*Ibid.*) The § 389, subd. (b), factors are not

arranged in a hierarchical order, and no factor is determinative or necessarily more important than another. (*Ibid.*, quoting *County of San Joaquin v. State Water Resources Control Bd.* (1997) 54 Cal.App.4th 1144, 1149.)

The factors include: whether or not a judgment rendered in the person's absence might be prejudicial; the extent to which the prejudice can be lessened or avoided; whether a judgment rendered in the person's absence will be adequate; whether the plaintiff will have an adequate remedy if the action is dismissed for nonjoinder. (Code Civ. Proc., § 389, subd. (b).)

A. Necessary Party

The parties here do not dispute that Nancy Pedneault is a necessary party. (See Opp. at 3:19-20. [“Just Because Ms. Pedneault Is a Necessary Party Does Not Mean That She Is Indispensable”].) Accordingly, if possible, the Court must order Pedneault joined. (Code Civ. Proc., § 389 (a) [“If he has not been so joined, the court shall order that he be made a party.”].) Here, this would require granting petitioner leave to amend the petition to name the real party in interest. The City argues this would be impermissible because the statute of limitations has run and the Doe statute cannot properly be invoked under these circumstances.

B. Filing and Service on All Parties Was Required Within 90 Days

The City demurs based on both the 90-day limitations period of Code of Civil Procedure section 1094.6 and the 90-day period set forth in Government Code Section 65009. Other than 90 days, neither party here suggests any alternative limitations period, which is determined by the “gravamen of the action.”

As to Code of Civil Procedure section 1094.6, citing *Simonelli v. City of Carmel-by-the-Sea* (2015) 240 Cal.App.4th 480, 486–487, petitioner contends the statute does not apply to the *grant* of a permit or variance. Even in the absence of that statute, however, Government Code Section 65009 appears to provide the applicable limitations period.

Government Code Section 65009 requires strict compliance with the 90-day period in order to “provide certainty for property owners and local governments regarding decisions made pursuant to this division.” (Gov. Code, § 65009, subd. (a)(3).) The Legislature found that “a legal action or proceeding challenging a decision of a city, county, or city and county has a chilling effect on the confidence with which property owners and local governments can proceed with projects.”

With respect to a challenge like the one here, the First District Court of Appeals has held that Government Code Section 65009 applies to the issuance of a permit that is accompanied by a zoning variance. (*Honig v. San Francisco Planning Dept.* (2005) 127 Cal.App.4th 520, 527-528.)

Further, neither side disputes that the final action subject to challenge here took place on September 22, 2205. Ninety days from September 22, 2205 ran prior to the end of the 2025 calendar year. At this time, the 90-day statute of limitations set forth in Government Code Section 65009 has definitively run.

Petitioner argues section 65009 does not explicitly require service on real parties in interest at the same time as service on the City. As a result, service on Pedneault within the 90-day limitations period was not required. This contention is contrary to the legislative intent underlying section 65009.

In *Honig, supra*, the court held that section 65009 applied for two reasons. First, the plaintiffs were attacking the variance, despite the claim they were challenging the building permit. Second, and

more significantly, the court found it unfair to apply the longer limitations period that governed a challenge to the building permit. The application of the longer period would enable an opponent of the variance to delay a review of the variance decision by failing to promptly serve the challenge to the building permit as opposed to the variance. A non-literal statutory interpretation therefore was required in order to effectuate the legislative intent of promptly resolving challenges to a city's land use decision. (*Honig, supra*, 127 Cal.App.4th at pp. 525-529.)

Petitioner's contention that service on Pendeault was not required within 90 days is unavailing for the same reason as in *Honig*, which he fails to address in the opposition brief. Interpreting section 65009 to permit service on Pendeault after this 90-day period would enable petitioner to delay any review of the City's decision. Review would be delayed because Pendeault is an indispensable party, and a land use challenge cannot be resolved in the absence of an indispensable party. (*Sierra Club, Inc., v. California Coastal Com.* (1979) 95 Cal.App.3d 495, 157 ("Sierra Club").)

In *Sierra Club*, another case petitioner fails to address in his opposition to the demurrer, the plaintiffs challenged a permit for a development project. (*Sierra Club, supra*, 95 Cal.App.3d at 498.) The permit holder was an indispensable party because the relief sought would impair his ability to protect his interest in the project. (*Id.* at 501-502, citing *Bank of California v. Superior Court* (1940) 16 Cal.2d 516, 522; Code Civ. Proc., § 389.) Because the statute had run, the permit holder could not be joined. Moreover, because the permit holder would be able to collaterally attack any judgment against him, granting relief would risk exposure to inconsistent obligations - one from the underlying case and another from a collateral attack. (*Sierra Club, supra*, 95 Cal. App. 3d at 501.) Failure to join an indispensable party is not tantamount to a jurisdictional defect requiring mandatory dismissal. However, to avoid prejudicing an indispensable party by impairing its ability to protect its interest and to prevent future collateral attacks leading to inconsistent judgments, a court should not proceed with an action if an indispensable party is not joined. Consequently, dismissal for failure to join an indispensable party was proper. (*Id.* at 500-502.)

Like the developer in *Sierra Club*, Pendeault holds a permit for an authorized development, and the permit is the subject of an action seeking relief that would injure or affect her interest. Additionally, if she is not joined in the action, she could collaterally attack any unfavorable judgment against her, and the City would be exposed to the risk of inconsistent judgments.

On the other hand, if this action is dismissed, petitioner still has the option of seeking Court intervention with respect to his private easement claims against Pendeault. This is consistent with the reasoning advanced by the City in initially approving the development. (Petition, ¶21 [City "took the position that the easements appearing on the Subdivision Map were 'private' easements and needed to be enforced in court"].)

C. Leave to Amend Not Warranted Because it is Not Possible to Join Pendeault Now

Under Code of Civil Procedure section 410.50, jurisdiction is not obtained until a party is served with a summons (in this case a petition). Pendeault was not named or served in the action before 90 days had run (on December 21, 2025). The Doe statute cannot change this result. Petitioner was not ignorant of real party's identity, so there is no relation back after the statute of limitations has run. (See Code Civ. Proc., § 474; *Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176-177.)

Accordingly, since Pendeault was not properly served by the expiration of the limitations period, there is no possibility that amendment can cure the issue. Pendeault is an indispensable

party (necessary and incapable of being joined), and the demurrer must be sustained without leave to amend.

16. 9:00 AM CASE NUMBER: N26-0497
CASE NAME: PETITION OF: NATIONWIDE INSURANCE COMPANY OF AMERICA
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: NATIONWIDE INSURANCE COMPANY OF AMERICA
TENTATIVE RULING:

Petitioner Nationwide Insurance Company of America seeks to compel Sheilagh Oliver to arbitration pursuant to agreement. Petitioner has provided a facially valid arbitration clause as well as demonstrated failure of Respondent to comply. The Court has received no timely opposition. Good cause shown, the Court **grants** the Petition. The parties are ordered to arbitrate this matter pursuant to their agreement.

The Court grants fees and costs, but believes they should be reduced. Respondent is ordered to pay \$600 in fees, to compensate Petitioner's counsel for three hours of time at the requested rate of \$200 per hour.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C26-00106
CASE NAME: FRANCISCO FRANCO VS. JUNE YOUNG
***HEARING ON MOTION FOR DISCOVERY ORDER COMPELLING PLAINTIFF'S FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: YOUNG, JUNE GRACE
TENTATIVE RULING:

Defendant June Young moves to compel further responses to Form Interrogatories and Special Interrogatories served on Plaintiff Francisco Franco in this action relating to a motor vehicle accident. The Court received no timely opposition to the Motion.¹ On July 30, Defendant filed a Notice of No Opposition Received in which she noted that she *had* received amended interrogatory responses. She appears now to be withdrawing her Motion with respect to the Special Interrogatories and also with respect to most of the Form Interrogatories. Unfortunately, one of the Form Interrogatories she reports she "still finds issue with" was not in the original Motion and does not appear in any of the papers. The Court therefore can only address Form Interrogatory Nos. 6.4 and 8.6.

Form Interrogatories

Form Interrogatory No. 6.4

This interrogatory seeks information relating to health care treatment arising out of the accident.

¹ The Court notes that, in case it has not previously been made clear, this matter has been assigned to Department 10 for all purposes.

Plaintiff referenced the document production generally and then itemized the bills, but only by providing an amount. Plaintiff did not point to specific documents in the production or provide any details relating to the care received (date, type of care, etc). Plaintiff's response does not comply with Code of Civil Procedure 2030.230. If Plaintiff is going to refer to documents, he must do so by identifying the specific documents from which Defendant can ascertain the responsive information. If not all responsive information is available on those documents, Plaintiff must add that information into the interrogatory.

Form Interrogatory No. 8.6

This interrogatory seeks information relating to alleged lost work from the accident. Plaintiff objected that this interrogatory seeks expert information and is therefore premature. Plaintiff will have the opportunity to supplement his calculations, but the dates of lost work are facts underlying expert reports, not the subject of expert work. Moreover, if there is a dispute about whether a date of lost work was attributable to the accident, Plaintiff will have the opportunity to explain that later. Plaintiff must provide information known at this time.

Sanctions

Defendant seeks sanctions in the amount of \$545.00 for the time expended on this motion, but cites no statute. Interrogatory sanctions are available for unsuccessfully opposing a motion to compel. Code Civ. P. § 230.300(e). That did not occur. It would appear that Defendant is therefore seeking sanctions pursuant to sections 2023.010 or 2023.020. At the very least, section 2023.020 is applicable, and the Court will therefore grant Defendant's request for sanctions.

Conclusion

Plaintiff must provide amended responses and pay \$545.00 to counsel for Defendant no later than 30 days from the date of hearing.